



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form L2 Application to End a Tenancy and Evict a Tenant or Collect Money

(Disponible en français)

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Section A: When to use this application

You can use this form to apply to the Landlord and Tenant Board (LTB) for an order to end a tenancy and evict a tenant for one of the following reasons:

- you gave the tenant a Notice to End your Tenancy for any reason, except non-payment of rent (*Form N4*),
- the tenant has abandoned the rental unit, or
- the tenant occupies the superintendent's unit and their employment as superintendent ended more than 7 days ago.

You can also use this form to apply to the LTB for an order requiring the tenant to pay you:

- compensation for each day they remain in the rental unit after the termination date set out in the *Notice to End your Tenancy*,
- the bank charges and related administration charges for NSF cheques the tenant gave you,
- the utility costs that the tenants failed to pay,
- compensation for damage the tenant, their guest, or another occupant of the rental unit caused to the rental unit or to the residential complex,
- expenses you have incurred because the tenant, their guest, or another occupant of the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest; and/or
- the additional amount the tenant would have been required to pay had the tenant not misrepresented their income or that of their family in a Rent- Geared-to-Income rental unit.

You cannot file this application if the tenant has already moved out of the rental unit, unless you are applying because you believe the tenant has abandoned the rental unit.

If the tenant moved out of rental unit on or after September 1, 2021 and less than a year ago, you may be able file an *Application to Collect Money a Former Tenant Owes (L10 Application)* to claim money you believe the former tenant owes you.

Note: If you are filing the *Form L2 Application to End a Tenancy and Evict a Tenant* after giving the tenant a *Notice to End your Tenancy*, you must file the Form L2 no later than 30 days after the termination date set out in the *Notice to End your Tenancy*.

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Section B: Steps you must take before filing the application

There are no steps you are required to take before applying to the [LTB](#) if you are applying:

- to end a tenancy because you believe the tenant has abandoned the rental unit,
- to end the tenancy because the tenant's employment as superintendent has ended, or
- for compensation for utility costs, damage to the rental unit or residential complex, expenses related to substantial interference, or misrepresentation of income, and you are not applying to end the tenancy.

If you are applying to end a tenancy and evict a tenant for any of the other reasons on *Form L2*, before you apply, you must give the tenant one or more of the following *Notices to End your Tenancy*:

- **Form N5** *Notice to End your Tenancy for Interfering with Others, Damage or Overcrowding,*
- **Form N6** *Notice to End your Tenancy for Illegal Acts or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit,*
- **Form N7** *Notice to End your Tenancy for Causing Serious Problems in the Rental Unit or Residential Complex,*
- **Form N8** *Notice to End your Tenancy at the End of the Term,*
- **Form N12** *Notice to End your Tenancy Because the Landlord, a Purchaser or a Family Member Requires the Rental Unit, and/or*
- **Form N13** *Notice to End your Tenancy Because the Landlord Wants to Demolish the Rental Unit, Repair it or Convert it to Another Use.*

You must also complete a Certificate of Service showing how and when you gave the tenant the Notice to End your Tenancy and submit it to the [LTB](#).

Read the instructions for the notice you gave to the tenant carefully to determine how many days' notice you must give the tenant and whether and how long you must wait to file this application. All Notices to End your Tenancy and the Certificate of Service are available from the [LTB](#) website at tribunalsontario.ca/lrb.

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Section C: How to complete this application

Read these instructions before completing the application form. You are responsible for ensuring that your application is correct and complete. Follow the instructions carefully when you complete the application form.

The information you fill in on the form will be read electronically; therefore, it is important to follow the instructions below:

- Print clearly or type and do not touch the edges of the boxes.
- If there are more boxes in a line than you need, start from the left and leave the extra boxes blank.
- Do not fill in boxes that do not apply to you (for example, if you do not have a fax number, do not fill in boxes in the space marked "Fax Number").
- If the instructions tell you to shade a box or a circle (for example, circles marked "Yes" or "No"), shade the box or circle completely.

Language Preference

The LTB offers services in both English and French. If you, your representative, or one of your witnesses would like to receive French Language Services, please select French.

Request for Accommodation

The LTB committed to treating all persons with dignity and respect and in a manner that promotes independence. The LTB is committed to providing an inclusive and accessible environment in which all persons have equitable access to our services.

Accommodations are arrangements to allow everyone, regardless of their abilities, to participate fully in the LTB's process.

Complete the Accommodation Request form if you require accommodation under the Ontario *Human Rights Code* or for a procedural fairness need. Provide as much detail as you can about your request for accommodation for your upcoming hearing. Email or mail your completed form to the LTB office that is handling your file. The LTB will review your request and make a decision based on the information you provide.

The form and more information about accommodation is available at tribunalsontario.ca/en/request-an-accommodation.

The LTB will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

Part 1: General Information

Address of the Rental Unit Covered by this Application

Fill in the complete address of the rental unit, including the unit number (or apartment or suite number) and the postal code.

If the street name includes a direction that will not fit in the five spaces provided (such as Northeast) use the following abbreviations: *NE* for Northeast, *NW* for Northwest, *SE* for Southeast, *SW* for Southwest.

Example:

If the address is: #208 at 1120 Mayfield Road North, London, N6J 2M1, this is how you should complete Part 1 of the application:

Street Number										Street Name																			
1 1 2 0										M A Y F I E L D																			
Street Type (e.g. Street, Avenue, Road)										Direction (e.g. East)										Unit/Apt./Suite									
R O A D										N O R T H										2 0 8									
Municipality (City, Town, etc.)																				Prov.		Postal Code							
L O N D O N																				O N		N 6 J 2 M 1							

Landlord's Name and Address

In the *Landlord's Name and Address* section, fill in the landlord's name and address. If the landlord is a company, fill in the name of the company under "First Name". Include both daytime and evening telephone numbers and a fax number and e-mail address, if you have them.

If there is more than one landlord, fill in information about one of the landlords in this section of Part 1. Provide the names, addresses and telephone numbers of the additional landlords on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb.

Tenant Names and Address

In the *Tenant Names and Address* section, fill in the tenant's name. If two tenants live in the rental unit, fill in both their names. If more than two tenants live in the rental unit, fill in information about two tenants in this section of Part 1. Provide the names, addresses and telephone numbers of any additional tenants on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb.

Mailing Address

Fill in the tenant's mailing address **only** if it is different from the address of the rental unit. Provide the tenant's daytime and evening telephone numbers. Also provide the tenant's fax number and e-mail address if you know them.

Related Applications

If you or your tenant have filed other applications that relate to this rental unit, and those applications **have not** been resolved, fill in the file numbers in the space provided.

Does the Tenant Still Live in the Rental Unit?

Shade either the **Yes** or **No** circle to answer whether or not the tenant is still living in the rental unit on the date you file this application. The tenant must still be in possession of the rental unit when you file this application, unless you are applying because you believe the tenant has abandoned the rental unit.

Part 2: Applying to end a tenancy

Shade the appropriate box or boxes to indicate what you are applying for.

Reason 1: I gave the tenant one of the following Notices to End your Tenancy.

If you selected *Reason 1*, shade the box(es) to indicate which *Notice(s) to End your Tenancy* you gave the tenant. Fill in the termination date set out in the *Notice to End your Tenancy*.

Reason 2: I believe the tenant abandoned the rental unit.

If you selected *Reason 2*, explain why you believe the tenant abandoned the rental unit. The tenant must also be in arrears of rent.

Reason 3: The tenant occupies a superintendent's unit and their employment as superintendent ended.

If you selected *Reason 3*, fill in the date when the tenant's employment as superintendent ended. Unless the landlord and the superintendent agree otherwise, the superintendent's tenancy ends on the day their employment ends. The superintendent has one week from that date to move out of the rental unit. You cannot charge the superintendent rent for that period. If the superintendent does not move out by the end of the seventh day, you can file this application.

Part 3: Applying to collect money the tenant owes you

You can apply to collect money the tenant owes you, whether or not you are also applying to end the tenancy and evict the tenant.

You can apply to collect money that you believe the tenant owes you for the following reason(s):

- compensation for each day the tenant remains in the rental unit after the termination date set out in the Notice to End your Tenancy,
- the bank charges and related administration charges for NSF cheques the tenant gave you,
- the utility costs that the tenants failed to pay,
- compensation for damage the tenant, their guest, or another occupant of the rental unit caused to the rental unit or to the residential complex,
- expenses you have incurred because the tenant, their guest, or another occupant of the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest; and/or
- the additional amount the tenant would have been required to pay had the tenant not misrepresented their income or that of their family in a Rent- Geared-to-Income rental unit.

You **cannot** use this form apply to collect money the tenant owes you if the tenant has moved out of the rental unit. If the tenant moved out of the rental unit in the past year and you want to collect money you believe the (former) tenant owes you may file an *Application to Collect Money a Former Tenant Owes (L10 Application)*.

Note:

- You can only apply for compensation for charges related to NSF cheques if you are also applying for compensation for each day the tenant remains in the rental unit after the termination date set out in the *Notice to End your Tenancy*.
- The most the LTB can order based on your claim is \$50,000. If you believe the tenant owes you more than \$50,000, and you want to collect the full amount, you should apply to court and not to the LTB. Once the LTB issues an order based on your application, you no longer have any claim to amounts greater than \$50,000 from your tenant.

Shade the appropriate box or boxes to indicate the reason(s) for which you believe the tenant owes you money.

Compensation

Shade this box if you are applying after giving the tenant a *Notice to End your Tenancy* and you want the tenant to pay you compensation for each day they remain in the rental unit after the termination date.

NSF cheque related charges

Shade this box if the tenant made a payment by cheque that was returned to you because of NSF, and the tenant(s) has not paid you back for the charges related to the NSF cheque.

If the tenant owes you for NSF charges, complete the table to show how you calculated the amount the tenant owes you. Fill in one row of the table for each NSF cheque the tenant gave you. Include the following

information:

- the amount of the cheque,
- the date of the cheque,
- the date the bank charged you for the NSF cheque (under *Date NSF Charge Incurred*),
- the amount the bank charged you for the NSF cheque (under *Bank Charge for NSF Cheque*),
- the amount of your related administration charges (under *Landlord's Administration Charge*),

Note: A landlord's administration charge for NSF cheques can include your personal or corporate costs related to the handling of NSF rent cheques. For example, this charge may include the costs for additional accounting expenses or tenant notification in cases of NSF cheques. The maximum administration charge for an NSF cheque allowed by the *Residential Tenancies Act, 2006* is \$20 per cheque.

- Calculate the amounts for each row in the *Total Charge* column by adding the amount for *Bank Charge for NSF Cheque* and the amount for *Landlord's Administration Charge*. Do not include the *Cheque Amount*.
- Calculate the amount for *Total NSF Related Charges Owning* by adding the amounts you filled in the *Total Charge* column.

Example: Stan Petri, the landlord, served Jean Jasper, the tenant, with a Form N8 Notice to End your Tenancy at the End of the Term for persistent late payment of rent on December 15, 2018. On December 31st, Jean gave Stan a cheque for \$1000 dated January 1, 2019 for January's rent, but the cheque was returned NSF. As a result, the bank charged Stan an NSF fee of \$5; the fee appeared on his bank statement on January 14th. Stan also had costs related to handling the NSF cheque. Jean paid Stan the rent for January but did not pay the charges related to the NSF cheque. Stan applied to end the tenancy and for compensation for an overholding tenant. In his claim for compensation, Stan wanted to include the NSF fee and a related administration charge of \$20.

Stan filled out the table below to show how he calculated the amount for charges related to the NSF cheque:

Cheque Amount \$	Date of Cheque dd/mm/yyyy	Date NSF Charge Incurred dd/mm/yyyy	Bank Charge for NSF Cheque \$	Landlord's Administration Charge \$	Total Charge \$
1,000.00	01/01/2019	14/01/2019	5.00	20.00	25.00
	/ /	/ /	.	.	.
	/ /	/ /	.	.	.
Total NSF Related Charges Owning \$					25.00

Utilities

Shade this box if you had expenses because the tenant did not pay utility costs that they were required to pay under the terms of the tenancy agreement. Utilities means heat, electricity and water. Fill in the total amount the tenant you believe the owes you.

Complete the table to show how you calculated the amount the tenant owes you. Fill in one row of the table for each utility bill. Include the following information:

- the name of the utility company,
- the date of the utility bill,
- the total amount of the utility bill,
- the period covered by the utility bill,

- the amount of the bill that has already been paid by the tenant (enter \$0 if nothing has been paid),
- the amount of the utility bill still owing by the tenant.

If you need to provide more information about the utility costs that you are claiming, use the space after the table.

Provide copies of the utility bills to the tenant and the LTB before the hearing. See the *Notice of Hearing* or LTB Rule of Procedure 19 for the deadline to disclose evidence.

If the tenancy agreement requiring the tenants to pay the utility costs is in writing, also submit a copy to the tenant and the LTB before the hearing.

Example: The tenancy agreement requires the tenant Jean Jasper to pay the landlord Stan Petri 50% of the hydro charges for the rental unit. On September 10, 2020, Anytown Hydro Company issued a bill for the month of August in the amount of \$300.00.

Jean did not pay 50% of this bill so Stan filled out the table below to show how he calculated the utility charges he is claiming:

Date of Utility Bill (dd/mm/yyyy)	Period Covered by Utility Bill From (dd/mm/yyyy) To (dd/mm/yyyy)	Total Bill Amount \$	Amount Paid by Tenant \$	Amount Owning by Tenant \$
Name of Utility Provider 1: Any Town Hydro Company				
10 / 09 / 2020	01 / 08 / 2020 31 / 08 / 2020	300.00	150.00	150.00
Name of Utility Provider 2:				
Name of Utility Provider 3:				
Total \$			150.00	

Damage

Shade this box if the tenant, their guest or another occupant willfully or negligently caused undue damage to the rental property and you want the tenant to pay you the costs to repair or replace the damaged property. Normal wear and tear is not considered undue damage.

Fill in the total amount the tenant owes you. Explain in detail what damage occurred to the property and how you calculated the costs you are claiming to repair or replace the damaged property. Be specific; for example, include the cost for each repair, or the cost to replace each damaged item. If you have not yet done the repairs or made the replacements, you can include estimates of the repair or replacement costs.

Provide copies of your evidence about the damage and your repair and replacement costs to the tenant and the LTB before the hearing. See the *Notice of Hearing* or LTB Rule of Procedure 19 for the deadline to disclose evidence.

Expenses related to substantial interference

Shade this box if you had expenses because the tenant or someone else visiting or living in the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest. Fill in the total amount the tenant owes you.

Explain in detail how the tenant, guest or occupant substantially interfered with your reasonable enjoyment or lawful right, privilege or interest, and how each expense is related to that conduct.

Example: the tenant pulled the fire alarm for no reason and you must pay a charge to the fire department, or the tenant did not allow your pest control technician to enter the unit even though you provided proper notice and you had to pay the technician to return on a later date.

Do not select this reason if tenant caused damage to the rental unit or residential complex or did not pay utility bills. There are specific reasons that can be selected on this application for these issues.

Provide copies of your evidence to tenant and the LTB before the hearing. See the Notice of Hearing or LTB Rule of Procedure 19 for the deadline to disclose evidence.

Misrepresentation of income

Shade this box if the tenant lives in a rent-geared-to-income rental unit and has misrepresented their income or that of family members living in the rental unit. Fill in the amount the tenant must pay you, and explain how you calculated this amount in detail. This amount must be based on the difference between the amount of rent the tenant paid and the amount the tenant should have paid based on their actual income.

Information about the Tenant's Rent and Rent Deposit

If you are applying to collect money the tenant owes you, the LTB will subtract any rent deposit and interest you owe the tenant from the amount the tenant owes you. If you did not collect a rent deposit, leave these boxes blank.

If you collected a rent deposit from the tenant:

- first, fill in the current rent that you charge your tenant
- next, fill in the amount of rent that you are *currently* holding as a rent deposit,
- next, fill in the date you collected the rent deposit,
- finally, if you have paid the tenant interest on the rent deposit, fill in the start date and end date of the last period for which you paid the tenant interest on the rent deposit.

Example: When Jean Jasper moved in on January 1, 2014, Stan Petrie collected a \$1000 rent deposit for the last month's rent. On January 1, 2015, he paid interest on the deposit for the period from January 1, 2014 to December 31, 2014. The current rent charged is still \$1000 per month. Stan has not paid any interest for 2015 yet. Stan would complete this part of the form as follows:

Information about the tenant's rent and rent deposit

Provide the following information to help the LTB determine the amount of money the tenant may owe you.

The current rent is: \$

The amount of rent currently on deposit: \$

The date the rent deposit was collected:
dd/mm/yyyy

The last rental period for which the tenant was paid interest on the rent deposit: to
dd/mm/yyyy dd/mm/yyyy

Part 4: Signature

If you are the landlord, shade the circle marked "Landlord". Then, sign the application form and fill in the date.

If you are the landlord's representative, shade the circle marked "Representative". Then, sign the application

form and fill in the date.

Schedule A – Additional Information: Ending a tenancy for demolition, repairs or conversion to another use

Complete this form **only** if you are applying to end a tenancy and evict a tenant based on a reason in *Form N13: Notice to End your Tenancy Because the Landlord Wants to Demolish the Rental Unit, Repair it or Convert it to Another Use*.

Part A: Permits

If you intend to demolish a rental unit, convert a rental unit to a non-residential use, or do repairs or renovations extensive enough to require the rental unit to be vacant, you will likely be required to obtain a building permit or some other form of authority (normally from the municipality) before doing the work.

If it is not possible to obtain the permits or other authority until the unit is vacant, the LTB will not issue an order terminating the tenancy and evicting the tenant unless you have taken all reasonable steps to obtain the permits or other authority. If you are not sure what permits or other authorities are required to do the work, you should contact your municipality. If you do not bring the permits or other authority to the hearing, or cannot show you took all reasonable steps to obtain them, the LTB may dismiss your application.

Shade either the **Yes** or **No** circle to answer whether you have obtained the necessary permits or other authority to do the work.

If you answered **Yes**, provide copies of the permits to the tenant and the LTB before the hearing. See the Notice of Hearing or LTB Rule of Procedure 19 for the deadline to disclose evidence.

If you answered **No**, you must obtain the necessary permits or have taken all reasonable steps to obtain the permits by the date of the hearing. If you obtain the permits by the date of the hearing, provide copies to the tenant and the LTB.

Part B: Compensation

In most cases, you must pay the tenant compensation or offer the tenant another rental unit acceptable to the tenant. The compensation must be paid by the termination date on the N13 Notice.

Important: The LTB will not issue an order terminating the tenancy and evicting the tenant if you haven't either paid the tenant the required compensation or offered the tenant another acceptable rental unit.

Reason you are applying to end the tenancy	Requirements for compensating the tenant
Because you intend to demolish or convert the rental unit or complex - 5 or more residential units	You must: 1. pay the tenant an amount equal to 3 months' rent, or 2. offer the tenant another rental unit that is acceptable to the tenant.
Because you intend to demolish or convert the rental	You must: 1. pay the tenant an amount equal to 1 months' rent, or

unit or complex – Fewer than 5 residential units	2. offer the tenant another rental unit that is acceptable to the tenant.
Because you intend to repair or renovate the rental unit - 5 or more residential units and The tenant has told you that they do not plan on moving back in once the repairs or renovation are done.	You must: 1. pay the tenant an amount equal to 3 months' rent, or 2. offer the tenant another rental unit that is acceptable to the tenant.
Because you intend to repair or renovate the rental unit - Fewer than 5 residential units and The tenant has told you that they do not plan on moving back in once the repairs or renovation are done.	You must: 1. pay the tenant an amount equal to 1 months' rent, or 2. offer the tenant another rental unit that is acceptable to the tenant
Because you intend to repair or renovate the rental unit - 5 or more residential units and The tenant has told you that they plan on moving back in once the repairs or renovation are done.	You must pay the tenant: 1. an amount equal to 3 months' rent, or 2. an amount equal to rent for the period of time the rental unit is being repaired or renovated Whichever is less.
Because you intend to repair or renovate the rental unit - Fewer than 5 residential units and The tenant has told you that they plan on moving back in once the repairs or renovation are done.	You must pay the tenant: 1. an amount equal to 1 month's rent, or 2. an amount equal to rent for the period of time the rental unit is being repaired or renovated Whichever is less.
Because you intend to repair or renovate the rental unit - 5 or more residential units and The tenant has told you that they plan on moving back in once the repairs or renovation are done.	You must pay the tenant: 1. an amount equal to 3 months' rent, or 2. an amount equal to rent for the period of time the rental unit is being repaired or renovated Whichever is less.
Because you intend to repair or renovate the rental unit - Fewer than 5 residential units and The tenant has told you that they plan on moving back in once the repairs or renovation are done.	You must pay the tenant: 1. an amount equal to 1 month's rent, or 2. an amount equal to rent for the period of time the rental unit is being repaired or renovated Whichever is less.

Exceptions:

- If you are applying to end the tenancy because you intend to **demolish, convert, repair or renovate a site on which a tenant-owned mobile home or land lease community home is located**, you must give the tenant either an amount equal to one year's rent, or \$3,000, whichever is less.
- You do not have to pay any compensation to the tenant if are demolishing, or repairing the rental unit because you were ordered to do so under a municipal property standards by-law, or another authority,
- The requirement to pay compensation does not apply to most social housing rental units.

Note: If the tenant lives in a care home, you must make reasonable efforts to find alternative accommodation for the tenant that meets their care needs. If you have made reasonable efforts but have not found appropriate accommodation, or if the tenant does not accept the accommodation you found, you will have to pay the tenant compensation as set out above.

You must indicate on the form whether you:

- paid the tenant the compensation, including the amount paid and the date it was paid,
- offered the tenant another rental unit and the tenant has accepted it; or
- will be paying the tenant compensation and the amount that will be paid.

Part C: Previous N12 or N13 Notices

If you gave any other N12 or N13 notices in the past two years you must provide the requested information for each notice. You must provide this information whether the N12 or the N13 Notice was for this rental unit or another rental unit for which you are the landlord. For each notice you must provide:

- the date you gave the notice,
- the address of the rental unit,
- if you gave a N12 Notice– the identity of the intended occupant
- if you gave a N13 Notice– the activity you intended to carry out (demolition/repair/conversion)
- if you filed an application based on the notice, the LTB file number.

Shade the box located after the chart if you have not given any other N12 or N13 Notices in the past two years for this rental unit or any other rental unit.

Your application may be dismissed if you do provide this information. It is also an offence to provide false or misleading information to the LTB.

Part D: Tenant's Right of First Refusal

A tenant who receives a N13 Notice for the purpose of repairs or renovations may have a right of first refusal. If a tenant exercises this right when the repairs or renovations are completed, they may reoccupy the rental unit at a rent that is no more than what the landlord could have lawfully charged if there was no interruption in the tenancy.

A tenant who wishes to have a right of first refusal must give the landlord notice in writing before vacating the rental unit and must inform the landlord in writing of any change of address.

Schedule B – Additional Information – Ending a tenancy for landlord's or purchaser's own use

Complete this form **only** if you are applying to end a tenancy and evict a tenant based on a reason in *Form N12: Notice to End your Tenancy Because the Landlord, a Purchaser or a Family Member Requires the Rental Unit*.

The reasons in the N12 are:

- the landlord, landlord's immediate family or a person providing care services to the landlord or family member requires the rental unit for residential occupation, or
- the landlord has entered into an agreement of purchase and sale of the rental unit and the purchaser, the purchaser's immediate family or a person providing care services to the purchaser or family member requires possession of the rental unit for residential occupation.

Immediate family members of a landlord or purchaser are: a spouse, their parents or their children.

Part A: Compensation

You must:

- pay the tenant compensation in an amount equal to one months' rent by the termination date on the N12 Notice, or
- offer the tenant another rental unit that is acceptable to the tenant.

You must indicate on the form whether you:

- paid the tenant the compensation, including the amount paid and the date it was paid,
- offered the tenant another rental unit and the tenant has accepted it; or
- will be paying the tenant compensation and the amount that will be paid.

Important: The LTB will not issue an order terminating the tenancy and evicting the tenant if you haven't either paid the tenant the required compensation or offered the tenant another acceptable rental unit.

Part B: Declaration

You must also submit to the LTB a declaration signed by the person who wants to move into the unit. The declaration must be submitted with this application. In the declaration, the person who intends to move in must say that they, in good faith, require the rental unit for their own use for a period of at least one year. The Board will not accept your application without the declaration. Instead of a declaration you may file a sworn affidavit.

Part C: Previous N12 or N13 Notices

If you gave any other N12s or N13 Notices in the past two years you must provide the requested information for each notice. You must provide this information whether the N12 or N13 Notice was for this rental unit or another rental unit for which you are the landlord. For each notice you must provide:

- the date you gave the notice,
- the address of the rental unit,
- if you gave a N12 Notice – the identity of the intended occupant
- if you gave a N13 Notice– the activity you intended to carry out (demolition/repair/conversion)
- if you filed an application based on the notice, the LTB file number.

Shade the box located after the chart if you have not given any other N12 or N13 Notices in the past two years for this rental unit or any other rental unit.

Your application may be dismissed if you do provide this information. It is also an offence to provide false or misleading information to the LTB.

Payment Information Form

Complete this form to provide the LTB with the information required to process your application. Your application

will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the [LTB](#) as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the [LTB](#). You will need to complete the [Fee Waiver Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the [Rules of Practice page](#) of [LTB](#) website.

Payment Method

Shade the appropriate box to show whether you are paying by money order, certified cheque, Visa or MasterCard. If you file using the [Tribunals Ontario Portal](#), you can file and pay directly on the system using a debit or credit card. Do not upload credit card information on documents if you are using the Tribunals Ontario Portal.

If you are filing my mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or debit card if you are filing your application by mail or courier.

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Section D: What to include when you file your application

To file this application, you must include the following:

- The completed L2 application form,
- The application fee. For a list of the [LTB's](#) fees visit the [Filing and Fees webpage](#).

If you are applying based on a Notice to End your Tenancy you gave the tenant, you must also include:

- A copy of the Notice to End your Tenancy you gave to the tenant
- A copy of the Certificate of Service showing how and when you gave the tenant the Notice to End your Tenancy, and
- The documents below that are specific to your reason for filing the application:

Form N5 Notice to End your Tenancy for Interfering with Others, Damage or Overcrowding:

- If this is the second *N5 notice* you have given the tenant within the last six months, you must also attach:
 - A copy of the previous notice you gave the tenant, and
 - A copy of the *Certificate of Service* showing how and when you gave the tenant the previous *Form N5* notice.

Form N6 Notice to End your Tenancy for Illegal Acts or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit:

- If this is the **second notice of termination** you have given the tenant within the last six months, and the first notice of termination was a Form N5 notice which the tenant voided by correcting the problem, you must also attach:
 - A copy of the Form N5 notice that you gave the tenant, and
 - A copy of the Certificate of Service showing how and when you gave the tenant the Form N5 notice.

Form N12 Notice to End your Tenancy Because the Landlord, a Purchaser or a Family Member Requires the Rental Unit:

- A copy of the completed Schedule B – Additional Information Ending a Tenancy for Landlord's Own Use form located at the end of the Form L2 application
- A declaration or affidavit signed by the person who wants to move in. In the declaration or affidavit, the person who intends to move in must say that he or she, in good faith, requires the rental unit for his or her own use. The declaration and affidavit forms are available from the [LTB](https://tribunalsontario.ca/ltb) website at tribunalsontario.ca/ltb.

Form N13 Notice to End your Tenancy Because the Landlord Wants to Demolish the Rental Unit, Repair it or Convert it to Another Use:

- A copy of the completed Schedule A – Additional Information Ending a Tenancy for Demolition, Repairs or Conversion to Another Use form located at the end of the Form L2 application.

Your application will be refused if any of the required items listed above are missing.

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Section E: How to file your application

You can file your application in one of the following ways:

1. Tribunals Ontario Portal

Complete and pay your L2 application online using [LTB](#) the Tribunals Ontario Portal.

If you use the Tribunals Ontario Portal, you must pay by credit card or debit card through the portal and don't need to complete a separate credit card payment form.

2. By Mail or Courier

Mail or courier your application to the nearest [LTB](#) office.

To find a list of [LTB office locations](#) visit the [LTB](#) website at tribunalsontario.ca/ltb. You can also call the [LTB](#) at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance. If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

Do not include credit card information on the form if you are using the Tribunals Ontario Portal.

3. By Fax

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to a computer and/or internet or can't visit a local ServiceOntario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry security compliance requirements, the LTB cannot accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the LTB at 1-888-332-3234 for information on how to submit payment information.

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Section F: What to do if you have any questions

You can visit the LTB website at: tribunalsontario.ca/ltb.

You can call the LTB at 416-645-8080 from within the Toronto calling area, or toll- free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the LTB's processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

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August 2023